



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLTA-24-2 – Amending UDC Sections 1.4.3 and 5.8.8
Date: April 22, 2024

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/22/2024
- Public Services Committee 5/7/2024
- Second reading 5/13/2024
- Public Services Committee 5/21/2024
- Third and final reading 5/28/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their April 15, 2024, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment with the following change:

j. To be considered a separate building, the structures must not share any structural attachment and no part of either building may be within ~~15'~~ of the other when viewed from plan view. Two structures closer than ~~15'~~ or with a structural attachment shall be considered one building for the purposes of setback, area, and number.

The Planning Commission Staff report is attached and has not been changed.

The Ordinance has been updated to reflect Planning Commissions recommendation.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 1.4.3 DEFINED TERMS AND 5.8.8 ACCESSORY BUILDINGS OF THE UNIFIED DEVELOPMENT CODE, CLARIFYING DETACHED BUILDINGS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on April 15, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 Defined Terms, of Article 1, General Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

Building, Detached. A building having no common wall ~~connection~~ or structural attachment with another building.

Section 4. That Section 5.8.8 Accessory Buildings, of Article 5, Zoning Regulations, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

5.8.8 Accessory Buildings

j. To be considered a separate building, the structures must not share any structural attachment and no part of either building may be within 5' of the other when viewed from plan view. Two structures closer than 5' or with a structural attachment shall be considered one building for the purposes of setback, area, and number.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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PLANNING COMMISSION

APRIL 15, 2024

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 1.4.3 and 5.8.8

CASE NUMBER: PLTA-24-2

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Sections 1.4.3 and 5.8.8 as outlined in this staff report and recommended by staff, noting the requests meets the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to make it clearer as to the definition of a detached building and how close an accessory building can be to other buildings on a residential property before they are considered attached. The reason for this text amendment is due to several issues that have arisen with structures being built adjacent to the principal building and then later being attached.

Currently the definition for a detached building states that there is no common wall connection with another building. There is nothing in the UDC that states how far an accessory building must be from another building or the principal building on a residential property. This means that you can place an accessory building within inches of another building or even the home. Due to this, there have been buildings built and then later attached to the principal building which creates many issues with setback requirements and even building code and fire code requirements.

Staff proposes changing the definition of a detached building slightly. The change would add that a detached building also does not have any structural attachments to another building. The full definition will state that there is no common wall or structural attachment, which will make the definition even clearer for what a detached building is.

Staff is also proposing adding a requirement for accessory buildings to be at least 1' from other buildings on the property to be considered detached or a separate building. This requirement makes a clear requirement for how far a building needs to be from another to be considered detached or separate. This will allow staff to determine setbacks easier and it will reduce the number of accessory buildings that become attached to the principal building.

Attached to this staff report are examples of some of the issues staff have run into. This is not to call out these property owners or point blame, but to show why staff has brought forward this amendment to make things clearer within the code.

PROPOSED AMENDMENTS:

Amend UDC Section 1.4.3, Defined Terms, specifically Building, Detached.

Building, Detached. A building having no common wall ~~connection~~ or structural attachment with another building.

Additionally, amend UDC Section 5.8.8, Accessory Buildings to add the following:

j. To be considered a separate building, the structures must not share any structural attachment and no part of either building may be within 1' of the other when viewed from plan view. Two structures closer than 1' or with a structural attachment shall be considered one building for the purposes of setback, area, and number.

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is necessary to address an issue not anticipated in the Comprehensive Plan when the Unified Development Code (UDC) was adopted. This issue was also not addressed when staff did a previous text amendment for accessory buildings. This amendment does not change the use of the property but provides clearer standards for what a detached / accessory building is.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

- (i) Regulate and restrict the:
 - (A) Height, number of stories and size of buildings and other structures;
 - (B) Percentage of lot that may be occupied;
 - (C) Size of yards, courts and other open spaces;
 - (D) Density of population; and
 - (E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.
- (ii) Establish setback building lines.

Assessment: This amendment proposes modifying the Unified Development Code to clarify the definition for detached buildings and to make a clearer requirement for accessory buildings in relation to how close they can be to a principal building or another building.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

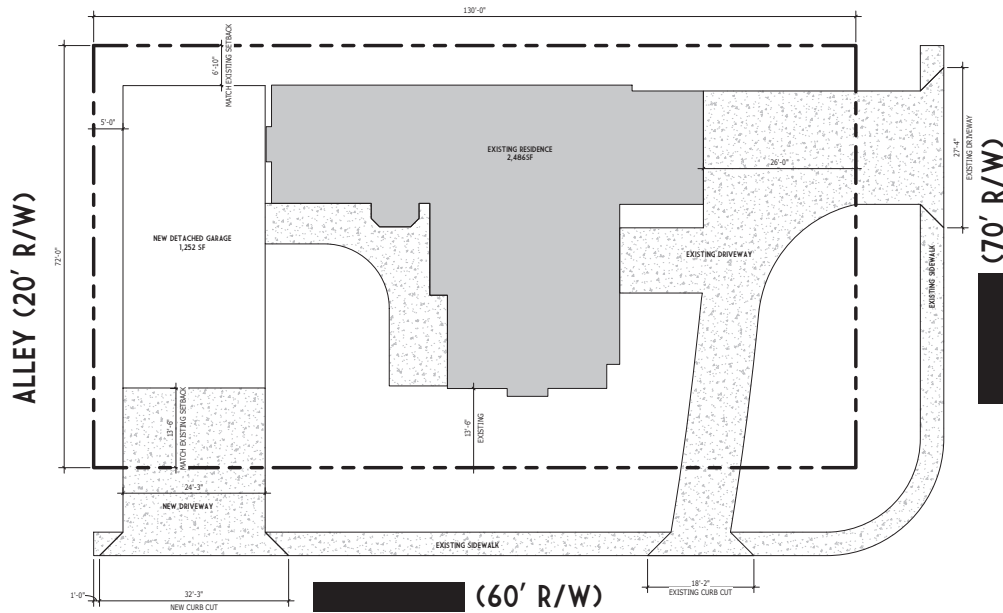
This amendment will make it clear as to what will be considered an accessory building. It will allow staff to better determine setbacks for accessory buildings and prevent potential fire and building code issues.

CONCLUSION:

Staff concludes that this text amendment meet the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Sections 1.4.3 and 5.8.8 as outlined in this staff report and recommended by staff, noting the amendment meets the review criteria of UDC 2.4.1.d.



1 SITE PLAN
1" = 10'-0"

PROJECT INFORMATION

LEGAL DESCRIPTION OF SITE:

ADDRESS OF SITE:

CURRENT ZONING OF SITE:

MR

LOT TYPE:

DD5

SITE AREA:

9,360 SF (.21 ACRES)

COMPUTATION TABLE

AREA BREAKDOWN (WITHIN PROPERTY LINES):

TOTAL BUILDING AREA	3,738 SF	(39.9%)
DRIVE, PARKING & WALKS	1,880 SF	(20.1%)
TOTAL BUILDING & HARDSCAPE SITE COVERAGE	5,628 SF	(60.0%)
LANDSCAPING AREA	3,732 SF	(40.0%)
TOTAL SITE AREA	9,360 SF	(100%)

PLAN REVIEW
02.11.19

POUPPRT
ARCHITECTS
Ph: (307) 778-8236
2400 Dunn Avenue
Cheyenne, Wyoming, 82001
Fax: (307) 652-4338



DRAWN BY: PDR
FILE NAME: [REDACTED]
ISSUE DATE: 02.11.19
PLOT DATE: 02/11/2019 10:00 AM

SHEET TITLE
SITE PLAN

SHEET:
SD1.0







